

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CRIMINAL MISCELLANEOUS JURISIDITION)

Present:

Mr. Justice S M Kuddus Zaman

And

Mr. Justice Md. Ali Reza

Criminal Miscellaneous Case No. 43983 of 2023

Md. Hossen Chowdhury and others

.... Accused-Petitioners

-Versus-

The State and another

.... Opposite Parties

Mr. Mohammad Mofizul Islam with

Md. Anwarul Islam, Advocates

.... For the petitioners.

Mr. Sujit Chatterjee, D.A.G. with

Ms. Farhana Afroze Runa, A.A.G.

Mr. Md. Abdul Aziz Masud, A.A.G.

Mr. Md. Shamim Khan, A.A.G.

.... For the State.

Mr. Md. Abu Sufian, Advocate

....For opposite party No. 2

Heard and Judgment on 09.01.2024

S M Kuddus Zaman, J:

On an application under section 561A of the Code of Criminal Procedure this Rule was issued calling upon the opposite parties to show cause as to why the proceedings of C.R. Case No. 3764 of 2019 under sections 420/406/109 of the Penal Code, now pending in the 18th Court of the Metropolitan Magistrate, Dhaka should not be quashed and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts in short are that the complainant was appointed as a Consultant by the accused. Centering the above consultancy service and contract of consultancy dispute arose and several cases were filed between the parties. Both above parties sat together for an amicable settlement of the disputes between them on 14.09.2019 and they entered into an agreement for withdrawal of all cases on receipt of Taka 50,00,000.00 by the accused from the complainant. Pursuant to above contract, accused No. 1 withdrew C.R. Case No. 546 of 2019 but the accused person did not withdraw the remaining C.R. Case No. 520 of 2019, C.R. Case No. 537 of 2019 and C.R. Case No. 2346 of 2019. As such the complainant has lodged this complaint under sections 420/406/109 of the Penal Code.

Mr. Mohammad Mofizul Islam, learned Advocate for the petitioner submits that the accused petitioner has withdrawn C.R. Case No. 546 of 2019 pursuant to the contract dated 12.12.2019 but he could not withdraw other cases due to legal complications.

On the other hand Mr. Md. Abu Sufian, learned Advocate for opposite party No. 2 submits that pursuant to the contract dated 14.09.2019 the accused petitioner received Taka 50,00,000.00 but withdrew only one case being C.R. Case No. 546 of 2019. Since the petitioner did not withdraw other 03(three) cases being C.R. Case No. 520 of 2019, C.R. Case No. 537 of 2019 and C.R. Case No. 2346 of 2019, he has committed an offence punishable under sections 420/406/109 of the Penal Code.

We have considered the submissions of the learned Advocates for respective parties and carefully examined all materials on record.

Undisputedly there was a contract for providing consultancy service by the petitioner and dispute arose between the parties centering

above contract for consult and several cases both civil and criminal were filed. It is also not disputed that above two parties sat for an amicable settlement of all above cases and entered into a contract on 14.09.2019. It was stipulated that the accused petitioner shall receive Taka 50,00,000.00 and withdraw 04(four) cases being C.R. Case No. 546 of 2019, C.R. Case No. 520 of 2019, C.R. Case No. 537 of 2019 and C.R. Case No. 2346 of 2019. It is also not disputed that pursuant to the above contract the petitioner has withdrawn C.R. Case No. 546 of 2019.

As undisputedly pursuant to above contract the accused has withdrawn one criminal case being C.R. Case No. 546 of 2019 it can be safely concluded that there was no element of initial deception on the part of the accused petitioners. This cases under sections 420/406/109 of the Penal Code, 1860 has been filed for non-performance of a contract but in the absence of an allegation of forgery a contract can be enforced by filing a suit for specific performance of contract. The opposite party instead of going to a civil Court for enforcement of the contract dated 14.09.2019 has filed this criminal case which is misconceived and the learned Judicial Magistrate committed serious illegality in initiating above still born and preposterous case which is not tenable in law.

In above view of the materials on record we find substance in this petition and the Rule issued in this connection deserves to be made absolute.

In the result, the Rule is hereby made absolute. The proceedings of C.R. Case No. 3764 of 2019, now pending in the Court of learned Metropolitan Magistrate, Court No. 18, Dhaka as far as it relates to the petitioner is hereby quashed.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.

Naheer, B.O.